

JOHN A. VOS, TRUSTEE V EVANS

23CV46959

FORMER COUNSEL'S MOTION TO PRESERVE ATTORNEY CHARGING LIEN

This is an action involving a petition for partition of real property brought by Plaintiffs John A Vos, Trustee of the Vos Family Trust Dated 8/31/2011 ("Vos"), Walter Lander, Trustee of the Walter Lander Revocable Trust formed on December 10, 1996 ("Lander"), IRA Services Trust Company CFBO Walter Landers IRA Account 562476, dba Forget Trust Co ("IRA Services") and Corcoran Sherman LLC ("LLC") against a variety of Defendants including Kristan E. Evans ("Evans.")

Now before the Court is a motion captioned as a "motion to recognize and preserve attorney charging lien" brought by Attorneys Real Estate Group ("AREG") which was formal counsel for Evans.

I. Relevant Background

On January 9, 2024, Evans entered into an Attorney-Client Retainer Agreement ("Agreement") with AREG for legal services to "Defend and prosecute Partition Action venued in Calaveras County, CA." (Declaration of Teresa M. Boyd ("Boyd Decl.") ¶ 2, Ex. A.) The Agreement included an Evergreen Retainer whereby an initial retainer of \$5,000.00 was deposited into the Client's Trust Account. The hourly rate for Attorneys was \$400.00 and \$190.00 for Paralegal/Assistant. (*Id.* at ¶ 6.) The Agreement further provides for an attorney charging lien against recovery proceeds. (*Id.* at ¶ 9.)

On September 9, 2024, Evans consented to a Substitution of Attorney wherein she substituted Attorney Kelly A. Vierra for AREG. (Boyd Decl. ¶ 9, Ex. B.) On September 29, 2025, AREG caused to be filed a Notice of Attorney Lien in the amount of \$41,568.94 (Boyd Decl. ¶ 6, Ex. C.)

AREG now seeks to have this Court enter an order recognizing and enforcing the charging lien.

II. Legal Standard and Discussion

In California, an attorney's lien is created either by contract or by implication where the retainer agreement clearly provides that the attorney may look to the judgment to seek attorney's fees. (*Carroll v. Interstate Brands Corp.* (2002) 99 Cal.App.4th 1168, 1172.) Although not required to by law, it is common practice and often advisable for the

attorney to file a notice of lien in the underlying action. (*Ibid.*) However, a notice of lien is not the same thing as the lien or lien claim. (*Ibid.*)

“Appellate courts have consistently held that the trial court in the underlying action has no jurisdiction to determine the existence or validity of an attorney's lien on the judgment.” (*Carroll*, supra 99 Cal.App.4th at 1173.) This is because “the attorney is not a party to the underlying action and has no right to intervene, [thus] the trial court acts in excess of its jurisdiction when it purports to determine whether the attorney is entitled to foreclose a lien on the judgment.” (*Ibid.*) Therefore, “an order within the underlying action purporting to affect an attorney’s lien is void.” (*Ibid.*; see also *Law Offices of Stanley J. Bell v. Shine, Browne & Diamond* (1995) 36 Cal.App.4th 1011, 1019 [attorney “contractual lien must be enforced, however, in an independent action by the attorney against the client and the attorney has no right to intervene in the main action to which he is not a party.”])

Under *Carroll* and other applicable authority, this court has no jurisdiction over a fee dispute involving an agreement between a party in the action and the attorney to that party and such a contractual lien must be enforced in an independent action.

Accordingly, the motion to recognize and preserve attorney’s lien is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the Order submitted by Defendant.

TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC, et al

24CF14779

**PLAINTIFF'S RENEWED MOTION TO DETERMINE
APPEARANCE OF BARRETT FARMS, LLC/PLAINTIFF'S
MOTION FOR TERMINATING SANCTIONS AS TO
DEFENDANTS DASHIEL MILLER AND BARRETT FARMS,
LLC**

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units from Defendants by Plaintiff. Defendants are Barrett Farms LLC ("Barrett"), Wildseed LLC ("Wildseed"), Michael McClaren ("McClaren") and Dashiel Miller ("Miller.")

Now before the Court is Plaintiff's renewed motion to "determine appearance and request for entry of default" as to Barrett. Defendants have not filed an opposition.

I. Facts Relevant to the Motion To Determine Appearance

On September 30, 2024, Plaintiff filed its Complaint against Barrett and Does 1-10. On December 20, 2024, Plaintiff filed proof of service of the Complaint and summons on Barrett by personal service. At a Case Management Conference ("CMC") on January 8, 2025, Miller (who is not an attorney) appeared on behalf of Barrett. At that CMC, the Court noted that the Complaint had been properly served and that no answers had been filed. On that same date, Miller filed an Affidavit in response to the Complaint which was treated as an Answer by the clerk. The Answer does not reference Barrett or attempt to respond on behalf of Barrett.

On May 9, 2025, Plaintiff filed a First Amended Complaint ("FAC") which added Wildseed, McClaren and Miller as defendants. On August 19, 2025, McClaren and Wildseed filed an Answer to the FAC as well as a cross-complaint against Barrett and Miller.